U.S. Department
of Transportation
**Federal Aviation
Administration**

800 Independence Ave., SW.
Washington, DC 20591

Gareth Gordon
[redacted]

Dear Mr. Gordon:

In a letter dated January 19, 2006, you inquired about the application of Title 14, Code of Federal Regulations (14 CFR) section 61.65(d) which contains the aeronautical experience requirements for an instrument rating. 14 CFR § 61.65(d) states in relevant part:

> (d) *Aeronautical experience.* A person who applies for an instrument rating must have logged the following:
>
> (1) At least 50 hours of cross-country flight time as pilot in command, of which at least 10 hours must be in airplanes for an instrument—airplane rating; and
>
> (2) A total of 40 hours of actual or simulated instrument time on the areas of operation of this section, to include—

You asked three interrelated-questions which we condense to two and paraphrase. First, must a pilot complete the 50 hours of cross-country flight time prescribed by subsection 61.65(d)(1) prior to flying the 40 hours of actual or simulated flight time prescribed by subsection 61.65(d)(2) and thus complete 90 total hours of flight? No. The flight time described in subsections (d)(1) and (d)(2) may be accrued concurrently. There is no requirement that these flight time requirements be met consecutively or sequentially. Thus the same flight time may be applied to satisfy both requirements provided that all the conditions prescribed (including those omitted from the quotation above) in section 61.65(d) are met.

Second, may a pilot complete the 50 hours of cross-country flight time prescribed by subsection (d)(1) as pilot in command under actual or simulated instrument conditions, prescribed by subsection (d)(2), with a flight instructor qualified to provide instrument training and thus satisfy both requirements within 50 hours of flight time? Yes. As explained above, the requirements of subsections (d)(1) and (d)(2) may be accrued concurrently. In the hypothetical presented, the pilot may log time as pilot in command so long as he or she is "the sole manipulator of the controls of an aircraft for which the pilot is rated" as is permitted under section 61.51(e).

We point out that flight time accrued under actual or simulated instrument conditions that a pilot seeks to apply towards the cross-country flight time requirement of subsection (d)(1) must meet the definition of cross-country time set forth in subsection 61.1(b)(3)(ii). Namely, the flight must involve a landing at an airport at least 50 nautical miles straight-line distance from the original point of departure. While it is possible that some portion of a pilot's 40 hours of flight time under actual or simulated instrument conditions also would qualify as 'cross-country time', it is rather unlikely that all of your hours would be accomplished as part of cross country flying. In a typical training schedule, a pilot would be trained for a number of hours in basic instrument flying techniques prior to beginning cross-country flights under actual or instrument flying conditions. Thus, we believe the scenario described is unrealistic because it presumes that all instrument training, including the instruction in basic instrument flying techniques, would be conducted as a component of cross-country flights.

We trust this interpretation has answered your questions. This letter was prepared by Naveen Rao, Attorney, Office of the Chief Counsel and coordinated with the Flight Standards Service.

Sincerely,

Rebecca B. MacPherson
Assistant Chief Counsel, Regulations Division